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Fundamental Rights

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4.1 Fundamental Rights

- ▶ The Fundamental Rights are defined as the basic human rights of all citizens.
- ▶ These rights, defined in part III of the Constitution, applied irrespective of race, place of birth, religion, caste, creed, or gender.
- ▶ They are enforceable by the courts, subject to specific restrictions as necessary for the protection of public interest.
- ▶ Originally the constitution provided for seven Fundamental Rights viz.
 - Right to equality (Article 14-18)
 - Right to freedom (Article 19-22)
 - Right against exploitation (Article 23-24)
 - Right to freedom of religion (Articles 25-31)
 - Cultural & educational rights (Articles 29-30)
 - Right to Property (Article 31) Removed from the constitution
 - Right to constitutional remedies (Article 32)
- ▶ But, Right to property was removed from the list of the Fundamental Rights by the 44th constitution Amendment Act, 1978 and after amendment, it was made a legal right.
- ▶ At present, there are only six Fundamental Rights. They are described below in brief.

4.2 Right to Equality

- ▶ Right to Equality is the first fundamental right, which brought the end of untouchability.
- ▶ This right stands for the principle of equality before the law as well as social equality and supports the non-discrimination of people on any basis.
- ▶ This right also states that every Indian citizen is equal in front of the law and prohibits discrimination on the grounds only of religion, race, caste, sex, place of birth, or any other grounds.
- ▶ Article 14 is available to any person including legal persons viz. statutory corporation, companies, etc.
- ▶ Article 14 is taken from the concept of equal protection of laws from the Constitution of the USA.
- ▶ Under Article 15 (3) & (4), the Government can make special provisions for women and children and for a group of citizens who are economically and socially backward.
- ▶ Article 16 says that there shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State.
- ▶ Article 18 says that no title, not being a military or academic distinction, shall be conferred by the State. No citizen of India shall accept any title from any Foreign State.
- ▶ The awards, Bharat Ratna, Padma Vibhushan, Padma Bhushan and Padma Shri, called as the National Awards would not amount to the title within the meaning of Article 18.

4.3 Right to Freedom

- ▶ The right to freedom includes Articles on freedom of speech, expression, and assembly and is one of the most important of the Fundamental Rights.
- ▶ There are six frames under which freedom is made available to Indian citizens under Article 19. It says that all citizens shall have the right:
 - to freedom of speech and expression.
 - to assemble peacefully and without arms.
 - to form associations or unions.
 - to move freely throughout the territory of India.
 - to practice any profession or to carry on any occupation trade or business.
- ▶ In addition to the three main rights of speech, expression, and assembly, this fundamental right also provides freedom of association, profession, movement throughout the territory of our country and freedom to reside and settle in any part of India.
- ▶ Article 21A provides that that State shall provide free and compulsory education to all children of the age of 6-14 years.
- ▶ Article 22 deals with protection against Arrest and detention in certain cases.

4.4 Right against Exploitation

- ▶ Article 23 deals with the prohibition of traffic in human beings and forced labor.
- ▶ Article 24 deals with the prohibition of employment of children in factories, etc.
- ▶ These rights help to prevent exploitation of the weaker section of different sectors by the state, organizations as well as individuals.
- ▶ Forced labor, working without labor, human trafficking, child labor, and other illegal and ethically unjust acts are prohibited by this Fundamental Right.
- ▶ The Bonded Labour System (Abolition) Act, 1976 was enacted by the Indian parliament in support of this basic right.

4.5 Right to Freedom of Religion

- ▶ India is a secular country and the right to freedom of religion to all its citizens ensures that all states treat all the religions neutrally.
- ▶ Every Indian citizen has religious freedom and can follow any religion of their choice.
- ▶ Right to freedom of religion also promotes a right to preach, practice and propagate any religion of their choice and guarantees freedom of conscience to all Indian citizens.

4.6 Cultural and Educational Rights

- ▶ The cultural and educational rights include the right to education and helps to conserve various heritages of minorities and protect them from discrimination.

- ▶ This fundamental right safeguards the minorities and prohibits discrimination against any citizen for admission into any educational institutions based on religion, race caste or language, subject to reservations in the State.
- ▶ This Fundamental Right also allows minorities to set up and administer educational institutions to preserve their heritage.

4.7 Article-32 Right to Constitutional Remedies

- ▶ Right to Constitutional Remedies allows Indian citizens to approach the Supreme Court or High Court to protect their fundamental rights.
- ▶ A person has the right to move to the Supreme Court or high court if his fundamental right is violated. For this purpose, application in writing known as the writ is made.
- ▶ Writ means a legal document in writing.
- ▶ Following are types of the writ:

Writ of Habeas Corpus

- ▶ Habeas corpus means 'to have a body'.
- ▶ Writ of habeas corpus is made when a person is detained or arrested without proper justification.

Writ of Mandamus

- ▶ "Mandamus means "command or order".
- ▶ It is command issued by the Supreme Court or High Court to any person, corporation, inferior court, public authority or Government who has to perform statutory duty but who fails to do so.

Writ of Prohibition

- ▶ Here prohibition command is issued by Supreme Court or High Court to an inferior court or Tribunal to refrain from doing something which it is about to do.
- ▶ It is based on the principle that prevention is better than cure.

Writ of Certiorari

- ▶ Certiorari means "to be certified" or "to be more fully informed of".
- ▶ It can be issued by the Supreme Court or High Court to the inferior court or any authority, whenever any authority of the court.

Writ of Quo Warranto

- ▶ Quo-warranto means "what is your authority"?
- ▶ This writ prevents a person from continuing in public office who has wrongfully usurped the office.
- ▶ The Supreme Court has rights to protect the fundamental rights of citizens even against private bodies, and can also award compensation to the affected individuals.

4.8 Features of Fundamental Rights

- Fundamental Rights help in the overall growth of individuals (mental, moral, social, etc.).
- They are written in **Part III** of the Constitution (Articles **12 to 35**).

- These rights help in developing political democracy.
- Some rights are available only to Indian **citizens**.
- Some are available to **everyone**, including companies and organizations.
- These rights are **not unlimited**—the government can put **reasonable restrictions**.
- Mostly, they protect people from **government actions**, but some also protect from **private actions**.
- If rights are violated, you can go to the **court** for justice.
- Some rights **stop the government** from doing wrong (negative rights).
- Some rights give **freedom or benefits** (positive rights).
- Courts, especially the **Supreme Court**, protect these rights.
- Rights can only be changed or removed by the **Constitution**, not by normal laws.
- Rights can be **suspended** during **emergencies**.
- **Article 19 rights** can be stopped during emergencies like war or national crisis.
- **Article 358** allows the suspension of **Article 19 rights** during emergencies.
- **Article 359** allows the President to **suspend the right to go to court** for certain rights.
- Some rights are limited for **armed forces, intelligence, or police** for national interest.
- Fundamental Rights can also be restricted in certain areas (like **Jammu & Kashmir**) by special laws.